

STATE OF NEW YORK

8244--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 5, 2025

Introduced by M. of A. PEOPLES-STOKES -- read once and referred to the Committee on Judiciary -- recommitted to the Committee on Judiciary in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property actions and proceedings law, in relation to registrations of residential mortgages in default

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivision 3 of section 1393 of the real property actions
- 2 and proceedings law, as added by chapter 600 of the laws of 2022, is
- 3 amended to read as follows:
- 4 3. Any local law, ordinance or resolution that allows for the regis-
- 5 tration of residential mortgages in default may impose a registration
- 6 fee not exceeding [~~seventy-five~~] three hundred dollars annually. A mort-
- 7 gagee and/or its agents are prohibited from passing along such fees to
- 8 the mortgagor in default.
- 9 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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